

**SYNTHETIC COURT DOCUMENT — FICTIONAL CASE — NOT AN
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UNITED STATES DISTRICT COURT FOR THE WESTERN DISTRICT OF VIRGINIA

Civil Action No. SYN-WDVA-25-CV-0733

Memorandum in Support of Officer Rusk's Motion for Summary Judgment

Filed November 21, 2025.

Introduction

Officer Nolan Rusk responded to a welfare call and encountered Mara Ellison in an apartment breezeway. When she would not cooperate with assessment, Rusk took wrist control. He testifies that she actively twisted, struck his forearm, and moved a hand toward his duty belt. He used one five-second drive-stun cycle while taking her down, ended the activation, secured her with Officer Priya Vega, and arranged medical care.

The Fourth Amendment judges that decision from the perspective of an officer in a tense, rapidly evolving encounter. It does not require certainty before an officer protects access to weapons. On Rusk's account, the brief force was reasonable. Qualified immunity independently applies because no controlling precedent clearly prohibited this limited response to a perceived strike and equipment reach during close physical resistance.

Ellison denies the strike and reach. Rusk maintains the record does not create a genuine dispute, but the alternative analysis below states the legal question on her version rather than treating the obstructed video as conclusive.

Memorandum — undisputed sequence and disputed center

The parties agree that Iris Ellison requested a welfare check at 19:42:11, reported a medication and mental-health crisis, and identified no known weapon. Dispatch sent Rusk and Vega. Rusk arrived at 19:52:14, made contact at approximately 19:52:48, and restrained one wrist near 19:53:02. Ellison was then seized within the Fourth Amendment's meaning.

They also agree that bodies and clothing restrict Rusk's camera from 19:53:08 to 19:53:22 and that Vega's angle does not reliably display the hands. At 19:53:11, the audio records “stop pulling” and “you're hurting me.” The device log records one contact-mode cycle from about 19:53:16 to 19:53:21. Ellison was cuffed by roughly 19:53:37 and medically evaluated.

The center is disputed. Rusk describes an active twist, contact to his forearm, and a hand moving toward the duty belt. Ellison describes a pain response and pulling, with no strike, reach, or immediate threat. The motion rests primarily on Rusk's perception but separately addresses the legal result if Ellison's account supplies the assumptions.

Memorandum — Rule 56 standard

Summary judgment is proper when no genuine dispute of material fact exists and the movant is entitled to judgment as a matter of law. Fed. R. Civ. P. 56(a). The nonmovant receives reasonable inferences, and the Court does not weigh credibility. *Tolan v. Cotton*, 572 U.S. 650, 656–57 (2014). A supported factual dispute must be genuine, not speculative.

Video can prevent a court from adopting a version that the recording blatantly contradicts. *Scott v. Harris*, 550 U.S. 372, 380 (2007). But this is not a case in which a continuous image plainly depicts the disputed conduct. Authenticity establishes that the camera files are genuine; it does not turn their physical obstruction into a visible event.

Rusk contends his sworn account, contemporaneous command, reported forearm contact, close movement, and prompt limited response outweigh Ellison's denial. The Court nonetheless must treat a competent contradictory account as evidence if a reasonable jury could credit it. Should the Court find a trial dispute, it may still determine qualified immunity on an expressly stated plaintiff-favorable version without deciding who is truthful.

Memorandum — objective reasonableness framework

Excessive-force claims during a seizure are governed by objective reasonableness. *Graham v. Connor*, 490 U.S. 386, 395–97 (1989). The analysis considers the severity of suspected conduct, whether the person poses an immediate threat, and whether she actively resists or attempts flight, along with the total circumstances. It avoids hindsight and recognizes that officers often make split-second choices.

The call's welfare purpose, absence of a reported weapon, and Ellison's distress favor measured tactics. They do not freeze the assessment at dispatch. A threat can emerge when contact begins. If Ellison struck Rusk and reached toward equipment, the immediate-threat and active-resistance considerations changed within seconds.

The challenged force was bounded. Rusk used contact mode during the takedown, not projectile probes at a distance; the device recorded one cycle; he did not repeat it after the view cleared; and officers transitioned to cuffs and medical care. The mode remains painful force, but duration, purpose, and cessation bear on proportionality. The question is whether the perceived danger justified that brief escalation at the moment it occurred.

Memorandum — safety interest under Rusk's account

Police duty belts hold tools and weapons. During close contact, a hand moving toward that area can create an immediate safety risk even if the person was unarmed before the movement. An officer need not identify the exact item sought or permit access before acting, provided the perception and response are objectively reasonable.

Rusk testifies that Ellison twisted against control, struck his forearm, and moved toward his belt. The breezeway limited lateral space, and Vega had not yet secured the other hand. Rusk used the cycle while directing Ellison down, stopped after one activation, and completed restraint. That account links the force to interruption of equipment access rather than punishment for mental illness or verbal disagreement.

Vega did not see the hands clearly. Her limited view neither corroborates nor refutes Rusk. The lack of a visible forearm injury also does not exclude contact. A reasonable officer may respond to a strike and reach without waiting to learn whether the strike causes lasting injury. On Rusk's version, the governmental safety need outweighs the brief, localized application.

Memorandum — resistance, distress, and alternatives

Rusk does not contend that distress alone authorizes force. Nor does he argue every failure to comply is dangerous. The asserted facts extend beyond passive hesitation: he describes twisting, a strike, and movement toward police equipment during wrist control. Those acts, if credited, support physical intervention even though the encounter began as a noncriminal welfare call.

Ellison emphasizes de-escalation options. Officers could continue speaking, change position, ask Vega to take the second arm, or adjust the grip when conditions permit. The Fourth Amendment does not require the least intrusive imaginable method. It asks whether the choice made was reasonable in the actual circumstances. A sudden equipment-access concern leaves less time to sequence alternatives than the calm beginning of the encounter did.

Dr. Dana North agrees that Rusk's asserted strike-and-reach premise materially changes the threat assessment. Retired Captain Rowan Pike concludes the one-cycle response was within accepted practice on that premise. Expert agreement about a hypothetical does not prove the premise, but it shows that Ellison's broad suggestion—welfare call plus distress necessarily bars such force—is not a sound operational rule.

Memorandum — video and human-factors evidence

Professor Adrian Crane found no alteration or unexplained discontinuity in the exported camera files. He aligned the streams and confirmed that neither reliably displays the decisive hand movements. His report appropriately rejects generated frames and automated reconstruction.

That conclusion limits both parties. Ellison cannot argue that a clear video affirmatively shows her hands remained away from the belt throughout the interval. Rusk likewise does not ask the Court to declare that hidden pixels depict a reach. The fact question turns on testimony, contemporaneous statements, visible context, and permissible inferences from the whole record.

The audio records Rusk's command to stop pulling and Ellison's complaint of pain. It supports a finding of close physical resistance while leaving its degree contested. Movement noise is not a forensic signature of a forearm strike. Rusk relies on his direct perception, not Professor Crane's technical report, for that detail. The correct Rule 56 treatment is to assess whether Ellison's contrary testimony creates a genuine dispute—not to fill the visual gap mechanically for either side.

Memorandum — alternative constitutional analysis on Ellison's facts

If the Court assumes Ellison was unarmed, pulled from a painful wrist grasp, did not strike, grab, flee, or reach for equipment, and posed no immediate danger, the governmental interest is substantially lower. Rusk preserves the argument that limited force could still be reasonable to control a noncompliant person near stairs during a lawful welfare seizure.

The drive-stun cycle complicates that argument because contact mode deliberately imposes pain. Under Ellison's facts, the Court would weigh the low severity of the precipitating event, absence of threat, modest pulling, available second officer, and crisis context against a five-second cycle and forcible takedown. Rusk recognizes that existing Fourth Circuit decisions scrutinize serious force where resistance does not create danger.

He nevertheless argues the total sequence remains distinguishable: hands-on restraint was in progress, movement occurred in a confined elevated passage, the cycle was singular, and force ceased promptly. If those distinctions do not defeat the constitutional prong, they remain relevant to whether prior law clearly placed the answer beyond debate for every reasonable officer.

Memorandum — qualified-immunity doctrine

Qualified immunity protects an official unless the facts show violation of a constitutional right that was clearly established when the conduct occurred. *Pearson v. Callahan*, 555 U.S. 223, 231–36 (2009). Courts may address either prong first. The right must be defined in a particularized manner rather than as a general freedom from unreasonable force. *Ashcroft v. al-Kidd*, 563 U.S. 731, 741–42 (2011).

Clearly established law need not contain a case identical in every respect, but existing precedent must give fair notice that the specific conduct is unlawful. General propositions may control an obvious case, while factual distinctions matter when reasonableness depends on danger, resistance, force type, and timing.

Rusk frames the defense-favorable question as whether, by February 3, 2025, precedent clearly forbade one drive-stun contact cycle during a takedown when an officer reasonably perceived an active strike and a reach toward duty-belt equipment. He submits that no controlling case does. If the Court uses Ellison's facts, it should separately ask whether the more limited pulling and absence of danger place the event inside a clearly established prohibition.

Memorandum — cited Fourth Circuit decisions

Armstrong v. Village of Pinehurst, 810 F.3d 892 (4th Cir. 2016), explains that resistance is not binary and that serious force requires attention to immediate danger. It addressed repeated tasing of a stationary person clinging to a post during an involuntary-commitment seizure and held the law at the 2011 event was not then clearly established. Its reasoning informed officers before 2025, but Rusk argues a perceived strike and belt reach supply the danger missing there.

Meyers v. Baltimore County, 713 F.3d 723 (4th Cir. 2013), distinguishes taser uses as threat conditions change. *Smith v. Ray*, 781 F.3d 95 (4th Cir. 2015), addresses force after modest movement by a person who, on the credited facts, gave no reason to appear dangerous. *Yates v. Terry*, 817 F.3d 877 (4th Cir. 2016), likewise involves force against a nonthreatening subject.

These cases support Ellison if her assumptions control. They do not clearly prohibit the response on Rusk's asserted equipment-access facts. The Court should avoid using a precedent premised on no immediate danger while silently deciding the disputed danger question against him.

Memorandum — injuries and force magnitude

The medical record identifies a wrist abrasion, two superficial contact burns, shoulder strain, and no fracture. Rusk does not deny observable injury. The absence of fracture is relevant to force magnitude but not dispositive; Fourth Amendment protection is not limited to catastrophic harm. Similarly, the existence of injury does not prove the force lacked justification.

Paramedic Mateo Cole did not witness the encounter and cannot reconstruct hand positions from the injury pattern. He accurately separates patient history from examination. The marks corroborate device contact, which Rusk admits, while leaving the reason for activation unresolved.

The response was shorter and narrower than repeated cycles or force continuing after restraint. Once officers gained control, Rusk did not activate the device again. Medical evaluation followed. Those facts matter to the totality and to fair notice. Ellison may argue even one cycle is excessive without immediate danger; Rusk's defense is that immediate danger existed as he perceived it and that, on any version, the confined encounter and limited duration prevent the case from matching precedent with sufficient clarity to remove immunity.

Memorandum — conclusion

The Court should grant summary judgment. On Rusk's supported account, an active strike and movement toward duty-belt equipment created an immediate safety need. One drive-stun cycle during the effort to take Ellison down was proportionate, ended promptly, and was followed by restraint and medical care. The Fourth Amendment did not require Rusk to allow equipment access before responding.

Qualified immunity provides an independent basis. No precedent available on February 3, 2025 clearly prohibited that limited response to the specific danger Rusk describes. The cases Ellison invokes depend on subjects who, under the facts credited there, did not pose a comparable immediate threat.

If the Court finds the strike and reach genuinely disputed, it should identify Ellison's assumed facts precisely. Rusk maintains immunity even then based on the encounter's confined setting, ongoing wrist-control resistance, one-cycle duration, and lack of a materially identical case. At minimum, the ruling should keep that legal contention distinct from any conclusion that a jury must decide what occurred behind the camera obstruction.

Respectfully submitted,

Fictional Counsel for Officer Nolan Rusk